

Church of Scotland (General Trustees) Order Confirmation Act, 1957

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An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Church of Scotland (General Trustees).

[19th December 1957.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Church of Scotland (General Trustees) Order Confirmation Act 1957.

SCHEDULE

CHURCH OF SCOTLAND (GENERAL TRUSTEES)

Provisional Order to extend the powers of the Church of Scotland General Trustees with respect to the investment of the funds held by them and for other purposes.

WHEREAS by the Church of Scotland (General Trustees) Order 1921 (hereinafter referred to as "the Order of 1921") the Church of Scotland General Trustees (in the Order of 1921 and hereinafter referred to as "the corporation") were incorporated and the heritable properties and investments detailed and set forth in the schedule to the Order of 1921 were transferred to and vested in the corporation :

And whereas pursuant to the Church of Scotland (Property and Endowments) Act 1925 the heritable properties securities and funds referred to in that Act were transferred to and vested in the corporation :

And whereas by the Church of Scotland Trust Order 1932 the Church of Scotland Trust was constituted and certain of the heritable properties and investments then held by or vested in the corporation (exclusive of those referred to in the said Act of 1925) were transferred to the Church of Scotland Trust and by the said Order of 1932 the corporation were authorised to receive take and hold any property or funds vested in or held by any person or body of trustees in connection with any church chapel of ease or mission chapel manse church hall or other property belonging to or connected with the Church of Scotland or vested in or held by any body committee or association connected with the Church of Scotland where such person or body of trustees or such body committee or association desire to convey transfer or make over the same to the corporation :

And whereas by section 17 of the Order of 1921 powers were conferred on the corporation with respect to the investment of the funds held by them but such powers have become unduly restricted and it is expedient that the powers of the corporation with respect to the investment of the funds held by them should be enlarged and extended as provided in this Order :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

1. This Order may be cited as the Church of Scotland (General Trustees) Order 1957 and shall be construed as one with the Church of Scotland (General Trustees) Order 1921 and this Order and the Church of Scotland (General Trustees) Order 1921 may be cited together as the Church of Scotland (General Trustees) Orders 1921 and 1957.

Short and
collective titles.

2. In this Order words and expressions to which meanings are assigned by the Church of Scotland (General Trustees) Order 1921 shall have the same respective meanings and "the Order of 1921" means the Church of Scotland (General Trustees) Order 1921. Interpretation.

3. Section 17 (Powers of investment) of the Order of 1921 is hereby repealed and the Order of 1921 shall be read and have effect as if the following section were inserted therein as section 17 thereof:— Powers of investment.

" 17. The corporation may invest funds in or upon all or any of the following investments securities and obligations (namely):—

(1) in investments in which trustees are authorised to invest trust funds according to the law of Scotland or the law of England for the time being ;

(2) in the purchase or on the security of heritable or real or leasehold property or real estate in any part of the world ;

(3) in or upon the public stocks or funds or Government securities of—

(a) the United Kingdom of Great Britain and Northern Ireland ; or

(b) any of Her Majesty's dominions ; or

(c) India ; or

(d) the British protectorates and protected states ; or

(e) any trust territory administered by the Government of any part of Her Majesty's dominions ; or

(f) the United States of America ;

(4) in or upon the deposit receipts bonds debentures debenture stock mortgages or other securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust unit trust mortgage insurance banking or otherwise registered or incorporated in—

(a) the United Kingdom of Great Britain and Northern Ireland ; or

(b) any of Her Majesty's dominions ; or

(c) India ; or

(d) the British protectorates and protected states ; or

(e) any trust territory administered by the Government of any part of Her Majesty's dominions ; or

(f) the United States of America ; or

in or upon the guaranteed or lien or preference or preferred or ordinary or deferred or common stocks or shares of any such corporation company or body or in or upon any securities issued or guaranteed by any such corporation company or body and in the case of banks and insurance companies whether or not there is liability for calls or other payments on any of the stocks shares or other securities of such banks and insurance companies :

Provided that if any properties or investments which are not of the nature authorised by the provisions of this section have

been or may hereafter be given or bequeathed or entrusted to the corporation they may notwithstanding anything in this section retain and hold such properties or investments.”

Costs of Order.

4. The costs charges and expenses of and incidental to the preparation obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the corporation out of the funds of the corporation.



Table of Statutes referred to in this Act

Short title	Session and chapter
Church of Scotland (Property and Endowments) Act 1925	15 & 16 Geo. 5. c. 33.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8. c. 52.

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